



SPONSOR: Rep. Michael Smith & Sen. Pettyjohn

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 227

AN ACT TO AMEND TITLE 10 OF THE DELAWARE CODE RELATING TO AUDIO RECORDING OF PROCEEDINGS IN THE COURT OF CHANCERY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 3, Title 10 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 332. Mandatory Audio Recording and Public Access.

4 (a) Requirement. Beginning January 1, 2027, the Court of Chancery shall audio record all public proceedings and
5 make such recordings publicly accessible.

6 (b) Public availability.

7 (1) Audio recording shall be posted to a publicly accessible online platform maintained by the
8 Administrative Office of the Courts.

9 (2) Recordings must be made available within a reasonable time after the conclusion of the proceeding.

10 (3) Each recording must include a disclaimer stating that it does not constitute an official court transcript.

11 (c) Exceptions.

12 (1) The presiding judicial officer may, for good cause shown, restrict public access to an audio recording
13 in whole or in part.

14 (2) Valid reasons may include protecting confidential business or personal information, safeguarding
15 witnesses, or ensuring a fair trial.

16 (3) A decision to withhold or redact audio recordings must be documented in a written order, which shall
17 be made part of the public record unless confidentiality requires otherwise.

18 (d) Implementation. The Court of Chancery shall adopt administrative rules to implement this section no later
19 than December 3, 2026.

SYNOPSIS

This Act requires the Court of Chancery, beginning January 1, 2027, to audio record all public proceedings and make such recordings publicly available. Such recordings must be made available within a reasonable time after the conclusion of the proceeding. The presiding judicial officer may, for good cause shown, restrict public access to an audio recording in whole or in part.